

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-14

AIRBOSS DEFENSE GROUP, LLC,
COMPLAINANT,

v.

FEDEX TRADE NETWORKS TRANSPORT & BROKERAGE, INC., MSC
MEDITERRANEAN SHIPPING COMPANY S.A. and MEDITERRANEAN SHIPPING
COMPANY (USA) INC., as agent for MSC Mediterranean Shipping Company S.A.
RESPONDENTS.

JOINT STATUS REPORT

Pursuant to the Presiding Officer’s December 12, 2024 Order To File Joint Status Report (“December 12 Order”), Complainant AirBoss Defense Group, LLC (“ADG”) and Respondents FedEx Trade Networks Transport & Brokerage, Inc. (“FTN”) and MSC Mediterranean Shipping Company SA and Mediterranean Shipping Company (USA) Inc. as agent for MSC Mediterranean Shipping Company SA (jointly “MSC”), by their respective undersigned counsel, hereby submit the joint status report required by the December 12 Order.

Pursuant to the previously submitted order of U.S. Magistrate Judge Erin Aslan of the U.S. District Court for the District of Maryland, the parties participated in a day-long mediation session on Tuesday, December 17. Entities that are parties to federal district court litigation arising out of the same transactions that are the subject of this proceeding, but who are not parties to this proceeding, also participated in the mediation.

Although the mediation did not result in resolution of the claims at issue, there was meaningful progress toward a potential resolution. Judge Aslan has proposed convening a second mediation session to attempt to reach a resolution. The judge has proposed January 16 or 28 or February 12 or 20, 2025 as dates

for a second mediation session. The parties intend to schedule and participate in a second mediation session.

The parties are also in agreement with the suggestion that a short stay in this proceeding to allow time for the second mediation to occur would be appropriate. Accordingly, the parties respectfully request that the Presiding Officer not issue a decision on the motions pending in this proceeding until after she has received a status report from the parties on the outcome of the second mediation session.

The parties undertake to furnish the Presiding Office with a status report with the date of the second mediation session once it is scheduled and a joint status report on the results of the second session once it has taken place.

Dated: December 19, 2024 Respectfully submitted,

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